

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: **Belgium/Flemish Community**

Organization or entity responsible for the preparation of the report: **Flemish Department of Education and Training**

Name of contact person: **Marie-Anne Persoons**

Email and telephone number of contact person: marie-anne.persoons@ond.vlaanderen.be, +32 2 553 95 89

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ Yes

☒ No, Belgium is not a party to this Convention (see however, remark below on *de facto* compliance) : Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☒ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

Concrete national action will depend on the future of CADE, its place in the Unesco work programme and its added value viz-à-viz other Unesco and UN instruments

No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☒ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☒ No (not directly CADE, see remark below)

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☒ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Belgium has not ratified the Convention.

However, due to adherence to the several international instruments, such as the International Covenant on Economic, Social and Cultural Rights, the UN Convention on the Rights of the Child, the UN Convention on the Rights of People with Disabilities, the European Convention on Human Rights, the European Charter for Social Rights, the European Cultural Convention and other Conventions of the Council of Europe, the clauses of CADE are integrated in the legislation in Belgium, i.e. the Belgian Constitution, Federal laws and legislation of the (linguistic) Communities (of which the Governments are competent for education).

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

First of all we can refer to art. 24 of the Belgian Constitution that establishes open access to education with free choice and cost free education for the whole period of compulsory

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

education. Important is also the right to free school choice of parents and students, preventing refusal of access by educational institutions.

Link: [belgian constitution.pdf](#)

In Belgium compulsory education starts in the last year of pre-primary (age 5) until the end of upper secondary education (age 18).

Flemish Community

The right to free education is applied by the Communities beyond the strict age of compulsory education to all learners from pre-primary age until the end of secondary education (2,5-18-19y), regardless of nationality (thus including newly arrived immigrants or refugees) and status (compulsory education and right to a school place even applicable to children of illegal immigrants).

Moreover, higher education and adult education are available at affordable cost and with even lesser costs or waivers of tuition depending on the socio-economic status.

For measures targeted at supporting specific vulnerable groups: see answers below.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

X In pre-primary education (including early learning and care)

X In primary education

X In secondary education

X In technical and vocational education and training

X In higher education

X In adult education and alternative learning

- Please indicate the relevant legal provisions:

First of all we can refer to art. 24 of the Belgian Constitution that establishes open access to education with free choice and cost free education for the whole period of

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

compulsory education. Important is also the right to free school choice of parents and students, preventing refusal of access by educational institutions.

Link: [belgian_constitution.pdf](#)

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

In Belgium, compulsory education starts in the last year of pre-primary (age 5) until the end of upper secondary education (age 18).

Flemish Community

The right to free education is applied by the Communities beyond the strict age of compulsory education to all learners from pre-primary age until the end of secondary education (2,5-18-19y), regardless of nationality (thus including newly arrived immigrants or refugees) and status (compulsory education and right to a school place even applicable to children of illegal immigrants).

Moreover, higher education and adult education are available at affordable cost and with even lesser costs or waivers of tuition depending on the socio-economic status.

For measures targeted at supporting specific vulnerable groups: see answers below.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

x In pre-primary education (including early learning and care)

x In primary education

x In secondary education

x In technical and vocational education and training

x In higher education

x In adult education and alternative learning

- Please provide details:

Apart from the general legislation on open, tuition-free access, there are the following measures in the Flemish Community:

- Maximum charge for small, extra costs apart from in pre-primary education (55 EUR/year) and primary education (105 EUR/year)
- Obligation for secondary schools to limit the extra costs to an absolute minimum
- Higher education (1116 EUR/academic year, lowered to 588 EUR or 131.50 EUR/academic year depending on socio-economic status combined with grants for students from families with

lower income (offered to 25 % of the students) and specific measures for students in refugee or refugee-like status.

- Affordable adult education with lower tuition and waivers for specific categories: lower family income, unemployment, newly arrived migrants and refugees, people with disabilities...

☒ Combatting discrimination in terms of curriculum:

X In pre-primary education (including early learning and care)

X In primary education

X In secondary education

X In technical and vocational education and training

X In higher education

X In adult education and alternative learning

- Please provide details:

Flemish Community: curricula should reflect the curricular learning outcomes for civic education aligned with principles of equality and non-discrimination.

Inspiration for the legislation (and implementation at the level of school networks and individual schools) has been taken from:

- EU Recommendation on key competences for lifelong learning (which includes civic competences)
- COE Reference Framework of Competences for Democratic Culture

List of learning outcomes: [Onderwijsdoelen](#)

Remark for HE: due to institutional autonomy the Government does not impose the objectives of the curriculum, but as citizens the HE staff is due to respect the principles of equality and non-discrimination as enshrined in the Constitution and other legislation.

☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Flemish Parliamentary Act of 2008 on Funding of school education that provides monitoring of social-economic background of all learners throughout their educational career, extra funding to schools with a disadvantaged public and obligation to all schools (pertaining to public law as well as private law) to grant equal access to all applicants without possibility of refusal of the free choice of students/parents. Remark: in the Flemish Community of Belgium, less than 0.5 % of schools are privately funded private institutions. Private institutions are mainstream (e.g. 74 % of students study in private secondary education) but they are publicly funded and put under the same legislation as

public institutions and thus due to perform their public responsibility of i.a. non-discriminatory access.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☒ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

See replies to Q 1.1.

Moreover, learning outcomes of school curriculum are valuing cultural diversity and mutual dialogue.

Flexible learning paths are provided for i.a. adults wishing to obtain upper secondary qualifications, students on sick leave, in higher and adult education for students combining studies with work or other duties.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Although equal access is strictly regulated and schools obliged and funded to cater for vulnerable groups, international (PISA, TIMSS, PIRLS and PIAAC) and national assessments (“Flemish tests” established since 2024) point at lower academic performance for students from disadvantaged background. There is also more risk to reach the end of compulsory education without upper secondary qualification and less smooth transition to higher education. In addition, newly arrived immigrants are often hampered by insufficient knowledge of the instruction language. Hence the strong emphasis with targeted programmes and financial support to linguistic integration of newcomers (both students and their parents) and monitoring of the knowledge of Dutch (instruction language) from pre-primary age onwards.

Other relevant general measures, including gender equality

- | | |
|---|---|
| <ul style="list-style-type: none"> ☒ Legislation provides for gender equality in education ☒ Policy measures aim to enhance gender equality ☒ Gender-responsive education sector planning is undertaken ☐ Providing positive or affirmative action measures ☐ Providing financial incentives and fellowships ☒ Teachers are trained (initial and in-service) on gender equality ☒ Teachers are trained to combat stigmatisation¹⁹ ☐ Other: Monitoring and data collection | <ul style="list-style-type: none"> ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education ☒ Re-entry programmes for young mothers are provided for ☒ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰ ☒ Curricula are rid of all stereotypes²¹ and bias ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
|---|---|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

See measures mentioned under the section of challenges below: STEM Action Plan and Action Plan on tackling early school leaving and absenteeism (collaborative action between all actors: students, families, school administrations, public authorities...): [Samen tegen schooluitval | Vlaams Ministerie van Onderwijs](#)

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

¹⁹ ‘ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

²⁰ ‘ Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal’ ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong’ (Cambridge Dictionary).

Underrepresentation of girls/women

Participation in STEM programmes by girls is still lagging behind. The increase in STEM participation is closely monitored for secondary, higher and adult education. STEM action plans are rolled out to enhance participation for girls, but also for boys. The current STEM 2030 Action Plan puts benchmarks toward a horizon of 2030: [STEM-monitor | Vlaanderen.be](#)

Underrepresentation of boys/men

- The teaching profession is becoming increasingly female. In school year 2023-2024, 75 % of the teachers in school education (pre-primary, primary and secondary education) were women.

Statistical data: [Personeelsleden Vlaams onderwijs | Vlaanderen.be](#)

- Early school leaving is more significant for boys than girls.

ESL for Flanders was is 5.4 % for boys and girls (gender gap: 2.5 % less ESL for girls)

<https://statbel.fgov.be/en/themes/work-training/training-and-education/early-leavers-education-and-training>

Action Plan on tackling early school leaving and absenteeism (collaborative action between all actors: students, families, school administrations, public authorities...): [Samen tegen schooluitval | Vlaams Ministerie van Onderwijs](#)

- More female than male students in higher education.

In 2022-2023 there were 43.99 % male students and 46.01 % female students in Flemish higher education.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

Since 1990 the Belgian Code Civil, art. 144 stipulates that no marriage is allowed for any person that has not reached the age of 18 years. Art 145 stipulates the (heavy) procedures under which an exception can be made, invoking serious circumstances only.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|--|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☒ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁵ and bias |
| ☒ Financial incentives and fellowships are provided for national minorities | |
| ☒ Other ²³ : see explanation below under legislation | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

(1) Linguistic minorities

As a multilingual country, there are strict regulations regarding the main instruction language in the different parts of the country. At the linguistic borders, there can be "language facilities" In the periphery of Brussels, which is in the Flemish Region, such minorities are French-speaking and receive the opportunity to have school programmes in French but funded by the Flemish Community of Belgium.

Article 6 of the **Education Language Law** regulates the situation in the municipalities with language facilities that provide education in the other official language of Belgium, which is however not the official language of that region. These schools were intended only for those

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

children whose mother tongue is not the language of that region. The region is obliged to open a minority school in the other official language of Belgium, which is not the official language of that region, when sixteen heads of families in a municipality with language facilities request the opening of a minority school.

(2) Minorities included in the *Flemish Parliamentary Act of 28 April 1998 on the Flemish policies on ethnic-cultural minorities*

Students who are temporarily or permanently absent from the family environment

- This status is proven either on the basis of a certificate of juvenile detention issued by a mandated facility or a social service of the juvenile court; or on the basis of a document issued by an authority independent of the school.

Travellers (so-called “travelling population”)

- Rom, Manush, Voyageurs and other people with a nomadic culture (artikel 2, 3° van het decreet
- t van 28 april 1998 inzake het Vlaams beleid ten aanzien van etnisch-culturele minderheden). This is proven by a declaration by the mayor that the address is a site specifically intended for the travelling population (Rom, Voyageur, Manush); or by an attestation of resident completed and signed by a non-profit organisation recognised by the Flemish Community or by a specific service or cell within a city or municipality.
- Roma: students for whom a declaration about their Roma identity has been made (voluntarily and on the basis of self-identification). Either through a document drawn up by an official body in Belgium or the country of origin or by a non-profit organisation recognised by the Flemish Community, which shows that the above-mentioned person is Roma. In the case of documents drawn up in a language other than Dutch, French, English, or German, a Dutch translation may be required that has been prepared by a Belgian sworn translator; or, during the period that the asylum procedure is in progress, through a document accompanying the asylum application that states that the applicant is Roma; or through a statement from an asylum centre stating that the aforementioned person is known as Roma.
- Students whose parents are bargees:

The family have a family composition certificate proving that both parents are inland waterway boatmen; or a copy of the application for reduction of boarding fees for children whose parents have no fixed abode; or a certificate, issued by an authority independent of the school, attesting that both parents belong to the professional group of inland boatmen;

- Students whose parents are fairground and circus operators and – performers:

The family have either a family composition certificate or a copy from the trade register showing that both parents are fairground or circus operators or performers; a membership card of a fairground or circus operator; or a copy of the application for reduction of boarding fees for children whose parents have no fixed abode; or a certificate issued by a body independent of the school stating that both parents belong to the professional group of fairground and circus operators and circus performers.

(3) Groups with priority in case of limited school capacity

Base: general legislation on school education

The following sub-groups right to education is guaranteed: foster children, boarding school students, adoptees, children placed by juvenile court (with juvenile support order)

(4) Religious minorities

In schools pertaining to public law, students have the right to receive education in a philosophy of life courses of their (parents') choice. The following options are provided: Roman-Catholic, Orthodox, Protestant, Judaism, Islam, Buddhism or non-confessional ethics.

For migrants and refugees – see answers under people on the move

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Similar challenges as observed for socio-economically vulnerable groups in general.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

Not applicable to Belgium. There are no indigenous populations.

²⁶ Supra note 15.

²⁷ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

NA

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☒ Multiple and flexible learning pathways ³¹ are provided |
| ☒ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ³² and bias |
| ☒ All administrative barriers to access education are removed | ☒ Accelerated learning programmes are provided |
| ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☒ Non-formal and/or alternative education programmes are provided |
| ☒ Teachers are specifically trained to ensure their inclusion | ☒ Language classes to newcomers are provided for |
| ☒ Teachers are trained to combat stigmatisation ³⁰ | ☒ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

Obligation to integrate newly arrived learners from age 2.5 to 18 in mainstream provision within 60 days upon arrival and in reasonable delays for higher education and adult education.

Schooling is optional for children between 3 and 5 years old, and mandatory for all children between 6 and 18 in Belgium, irrespective of their residence status. Education is mostly free until 18 years old. Any additional costs related to meals or school visits are paid by Fedasil for asylum seekers staying in a reception centre.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

In primary schools (6-12 years old), children of asylum seekers mostly join the general classes of local schools with, however, specific (mostly linguistic) support. In secondary schools, classes with adapted course packages and teaching methods- the so-called “reception classes” (OKAN) in mainstream schools, are organised for children of newly arrived migrants and asylum seekers. Those children are later integrated in regular classes once they are considered ready for it.

In higher education refugee students and students in refugee-like status get certain facilities for access to higher education, as well as financial support (waivers of tuition fees, grants...)

Similar measures in adult education (lower tuition)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The following definitions and subgroups of “immigrant background” are applied:

Newcomers with a language other than Dutch (in full-time mainstream/ordinary secondary education):

a pupil who simultaneously satisfies the following conditions:

1) on 31 December following the start of the school year has reached the age of at least twelve and not eighteen;

2) is a newcomer, i.e. has lived in Belgium for no more than one uninterrupted year;

3) does not have Dutch as his home language or mother tongue;

4) does not have sufficient command of the language of instruction to be able to follow the lessons successfully;

5) has been enrolled for no more than nine months (not including the holiday months of July and August) in an educational establishment whose language of instruction is Dutch.

Newcomers with a language other than Dutch in full-time mainstream/ordinary secondary education or part-time professional secondary education: a pupil who officially resides in an open asylum centre, i.e. a collective reception structure as referred to in Article 2, 10°, of the Law of 12 January 2007 on the reception of asylum seekers and of certain categories of foreigners, and who on 31 December following the start of the school year has reached the age of at least twelve and not eighteen in part-time professional secondary education respectively, and has not yet reached the age of eighteen.

Students with immediate and temporary protection (EU Directive 2001/55; see article 57/29 and following in Belgium’s so-called Verblijfwet)

Implementation of international legal instruments

- Unesco/COE Lisbon Recognition Convention (art 7 on refugees and people in refugee-like status)

- Utilisation of the European Qualifications Passport for Refugees

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

Measures are for all refugees or people in refugee-like status. For the time being our education system is not confronted with displaced people for climate reasons only (always combined with other challenges, e.g. violent conflict, which can i.a. impact the environment, cause famine etc.)

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Flemish Community applies to rule that within 60 days upon arrival learners of pre-primary, primary and secondary education should receive a place in a regular school (no segregated education provision). In practice, the capacity of some local schools is not always sufficient to absorb all asylum-seeking children entitled to education and specifically to language classes. Free transportation to a school with sufficient capacity is applied as a temporary solution to avoid waiting lists. The short deadline of 60 days appeared to be very ambitious at the last refugee crisis following the conflict in Ukraine, causing Ukrainian children were taught in separate provisions in the beginning. For higher education and adult education the speedy integration was less difficult.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Since many decades there was a large separate provision of for students with SEN.

³³ Supra note 15.

³⁴ Supra note 16.

Although the funding was significantly higher than for regular education and the teacher possessing of higher or more specialised qualifications, the system was reformed through the so-called “M-decree” in 2015 that encouraged integration of students with SEN into mainstream schools, while facilitating transfer of expertise from special schools and teachers to mainstream schools and thus realising more inclusion. As a result, the number of students with SEN in mainstream schools increased.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

The implementation of the M-decree encountered several obstacles, and entailed the risk that students with complex needs would receive less tailor-made education when attending a mainstream school, compared to following classes in a special schools. This situation was i.a. due to the fact that staff at mainstream schools was less prepared for SEN education. Therefore parents were often also reluctant to have their children make their transition from special schools to mainstream schools.

In view of remediation while pursuing the objective of a more inclusive education a new Flemish Parliamentary Act on Educational Support was approved by the Parliament that established a reformed system from 2023 onwards, establishing a stronger partnership between special and mainstream schools. Financially it increases the support for mainstream schools to provide SEN education, provides for training courses for staff in mainstream schools and reinforces the special schools and their staff as centre of expertise for other schools.

Moreover the freedom of choice by parents to enrol their children in either a mainstream or special school is fully respected.

Students from poor households:

☒ Financial incentives and fellowships for school enrolment are provided

☒ Teachers are trained to combat stigmatisation³⁵

☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education

☒ Curricula are rid of all stereotypes³⁶ and bias

☐ Positive or affirmative action measures are provided

☒ Other: top-up financing of schools with children from families with weak financial background based on monitoring social-economic situation on the basis of indicators of disadvantage

³⁵ Supra note 15.

³⁶ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Parliamentary Act on the Funding of School Education (2008) supporting schools with top-up financing (pre-primary and primary education) or extra teaching hours (secondary education) according to the number of students complying with indicators of disadvantage: home language different of school language, low education attainment of the mother, unemployment status of parents, entitlement to means-tested grant (as proxy of weak financial situation of the family)

- System of means-tested grants (depending on family income) from pre-primary age onwards.

- Child allocations to families are increased in case of social disadvantage.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

The right as such is not problematic but rather the inequality of outcomes: less good academic performance, completion of upper secondary education, participation in higher education... of learners from socio-economically vulnerable groups.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- See general rules on open and tuition-free access starting from age 2.5 and maximum charge for extra costs (max. 55 EUR/schoolyear)
- Compulsory pre-primary from age 5.
- Specific language support (and testing) for those speaking another language at home than the language of instruction
- Definition of developmental and learning goals for curriculum in pre-primary
- Monitoring/testing and support by Centers for Pupil Support to schools and individual children and their families to facilitate smooth transition from pre-primary to primary.

- Is compulsory and free of charge pre-primary education available?

X Pre-primary education is compulsory. Please provide the age of enrolment and duration:

From age 5 (last year of pre-primary education)

☐ Pre-primary education is **not** compulsory.

X Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

All pre-primary education (private and public) is tuition-free (from age 2.5 y onwards).

Extra costs are not allowed to exceed 55 EUR/schoolyear.

☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ Poor quality programmes

☒ Other:

☐ Poor learning outcomes

☐ Low number of professionally trained educators

☐ Lack of support to families

Growing number of newly arrived immigrants without knowledge of the instruction languages, calling for extra linguistic support, monitoring of language progress (so-called KOALA-tests) to make sure that children can make an easy transition into primary education.

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

6 to 12 y

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Belgian Constitution art 24 for free compulsory education.

Flemish Parliamentary act on the funding of school education (2008) providing for public funding for all school, public and private, funding for schools with disadvantaged public, monitoring of social and economic background of pupils (in view of differentiated funding) and establishing a maximum charge in pre-primary and primary education.

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ Poor learning outcomes in:

Foundation literacy

- ☐ High dropout rates
- ☐ Poor quality programmes
- ☐ Other:

Numeracy
Social and emotional learning
Others

- ☒ Disparity in learning outcomes
- ☐ Low number of professionally trained teachers

According to national tests, as well as participation in TIMSS and PIRLS, social disadvantage has a significant negative effect on academic performance.

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

12-14

- Please provide the age of enrolment and duration of upper secondary education:

14-18/19 (depending on the programme)

- Is lower and upper secondary education compulsory and free of charge?

- X Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- X Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- x Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- X Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies,

uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Belgian Constitution art 24 for free compulsory education. Flemish Parliamentary act on the funding of school education (2008) providing for public funding for all school, public and private, funding for schools with disadvantaged public, monitoring of social and economic background of pupils (in view of differentiated funding) and establishes the obligation for schools to limit the extra, smaller costs.	
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- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

Federal law on employment of children. https://emploi.belgique.be/fr/themes/reglementation-du-travail/la-reglementation-du-travail-des-enfants In principle minors are not allowed to work until the end of full-time compulsory education (age 18). There are, however, exceptions for - Students from 15 y onwards if enrolled in dual vocational education (part-time study, part-time work). The employment is then seen as part of a learning trajectory - Student jobs (limitation of days and hours and not interfering with necessary presence at school in the context of compulsory) from age 15 onwards
--

- What challenges were encountered in realizing secondary education?

- | | |
|--|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☒ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |

☐ Other:

See answers above on early school leaving (which is improving) and poor academic performance, especially for vulnerable groups.

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

☐ Higher education is free of charge

☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)

☒ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☒ Higher education is accessible through credit transfer system between states

☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☒ Other: open system and affordable tuition

Affordable

Higher education is accessible through affordable tuition that can be waived or lowered based on socio-economic status or refugee status of the applicant.

Open access system (freedom of choice)

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

In principle all secondary school graduates have direct access (without admission procedures) to any programme and institution in Flanders. Entrance exams are exceptional and limited to medical studies and dentistry (central examination organised by the Flemish authorities), visual art and performing art (intake organised by the Schools of Art) and nautical studies (physical aptitude tests).

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

Codex of Higher Education legislation in the Flemish Community

<https://data-onderwijs.vlaanderen.be/edulex/document.aspx?docid=14650>

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ Poor quality programmes
- ☐ Poor learning outcomes
- ☐ Low number of professionally trained professors
- ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary
- ☒ Other: underrepresentation of certain groups

As the Flemish authorities monitors the socio-economic background of all learners from pre-primary to higher education, there is solid evidence that those students complying with indicators of disadvantage run the risk to leave secondary education (at age 18) without obtaining the secondary qualification. Hence there is no direct access to higher education.

Despite the open access policies that grant access to any secondary education graduate, there is a higher risk to drop-out after entering higher education and eventually not complete the programme enrolled for.

Higher education institutions receive dedicated budget to support students of disadvantaged background, especially in the first year of higher education studies.

Recently the Flemish Community has added programmes in short professional education (associate degrees) to its Qualifications Framework and is steadily increasing the offer in view of facilitating the transition into higher education.

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☒ Other: | |

Low participation in lifelong learning despite the wide offer of publicly funded courses.

- Please elaborate. Brief quantitative information may be added.

As Belgium as a whole, the Flemish Community struggles with low participation rate in lifelong learning, notwithstanding the wide offer of affordable, publicly funded courses.

It is also striking that the uptake of LLL opportunities by low-skilled learners is even lower than those that are medium- and high skilled.

Flanders plans to introduce an individual learning and career account for citizen with the aim to increase adult participation in life-long learning.

This will enable citizens to access information on their learning rights and the related support measures available to them in one place, thus improving transparency and inclusion. In preparation for the development of this account, in 2022, the Flemish government and social partners published a vision paper.

More information can be found on the project webpage [here](#) or in the vision paper [here](#).

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

X State monitoring and inspections

X Health and sanitation

X Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

X Infrastructure

X Curriculum

- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

All aspects are integrated in school evaluations carried out by the Inspectorate.

Since 2018 the framework received an update (Inspectorate 2.0) that is more holistic and focusses attention to the interlinkages between the different aspects of school performance : [ABC van Inspectie 2.0 | Onderwijsinspectie](#)

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Low quality educational infrastructure and materials

☐ Violence in schools

☐ Inadequate parental support to education

☐ Cost of education

☐ Long distances to schools

☐ Conflicts or crises

☒ Other:

Poor learning outcomes with some students

- Please elaborate. Brief quantitative information may be added.

Results on international large scale assessments (PISA, TIMSS, PIRLS) and national tests (Flemish tests) point at decreasing academic performance. Poor mastering of the instruction language is an important factor, as are some other societal changes.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

☒ Teacher training is provided without discrimination.

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

☒ Initial training and continuous professional development are provided.

☒ Minimum standards and qualifications required for the teaching profession.

☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.

☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.

☐ Establishment of performance monitoring systems.

☐ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- ☒ Shortages of teaching staff
- ☐ Lack of qualified, trained and motivated teaching staff
- ☐ Lack of training centres
- ☒ Other:
- ☐ Low quality educational infrastructure and materials
- ☐ High student – teacher ratio

Attrition of new teachers.

- Please elaborate. Brief quantitative information may be added.

Young teachers often start in more “difficult” schools.

Mentoring trajectories are set up in cooperation with the school networks to counter their attrition and to enhance their resilience.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

- Please elaborate on each of the measures taken:

- See answers above (learning outcomes for civic education legally defined)

- Subsidies to organisations providing educational activities for schools (students and teachers).

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

See answers above. Flemish legislation applies to all schools, regardless of their legal status (public or private). Since 2008 (Parliamentary Act on the Funding of School Education) they are funded (and quality assured) on equal footing and all have to perform their public responsibility and apply open, non-discriminatory access (no refusal of students is allowed).

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

See answer to previous question.

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

In schools pertaining to public law, students have the right to receive education in a philosophy of life courses of their (parents') choice. The following options are provided: Roman-Catholic, Orthodox, Protestant, Judaism, Islam, Buddhism or non-confessional ethics.

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:

X Registration

X State monitoring and inspections

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☒ X Qualifications of teachers

☒ X Health and sanitation

☒ X Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☒ X Infrastructure

☒ X Curriculum

☒ X Student-teacher ratio

☒ X School fees (no tuition fees, same regulation for extra costs)

☒ X School closures

☐ Other

See answer above – same regulation applies to public and private schools. They are all publicly funded on the same footing. There is less than 1 % of schools in Flanders that are privately funded private institutions.

- Please elaborate:

- What challenges were encountered in non-state education provision?

☐ Low quality educational infrastructure and materials

☐ Issues in terms of equity and inclusion

☐ Low number of professionally trained teachers

☐ Weak government regulatory and monitoring capacity

☐ High student – teacher ratio

☐ Other:

NA

- Please elaborate. Brief quantitative information may be added.

NA

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

⁴⁴

Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Please consult the PEER country profile of Belgium to the Unesco GEM report “Technology in Education”, that contains an overview of the measures and legislation:

<https://education-profiles.org/fr/europe-et-amerique-du-nord/belgique/~technologie>

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

For the Flemish Community of Belgium, apart from the measures mentioned in the PEER country profile, we can refer to the pivotal role of the Knowledge Centre for Quality Digital Education (Digisprong), integrated in the Ministry of Education and Training and preparing policies in a horizontal and coordinated way and in dialogue with all stakeholders (educational field and IT providers).

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|---|
| ☒ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☒ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☒ Difficulty in regulating the use of digital education solutions |
| ☒ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

Impact on human rights of learners and teachers (privacy, autonomy..)

Necessity of media literacy and digital citizenship education, resilience toward disinformation etc

Challenges of AI

- Please elaborate. Brief quantitative information may be added.

- Establishment of Knowledge Centre for Quality Digital Education (Digisprong), integrated in the Ministry of Education and Training and preparing policies in a horizontal and coordinated way and in dialogue with all stakeholders (educational field and IT providers).

- Flanders Policy Plan on AI (updated March 2024) contains a section on raising awareness, training and ethical framework: <https://flandersai.be/en/beleidsplan-artificiele-intelligentie>

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. Please provide the link:

Statistics and other data on system/local and school level are presented in a comprehensive and searchable way on the Dataloep (“data loupe”) platform:

[Dataloep: aan de slag met cijfers over onderwijs](#)

- ☒ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☒ The decision-making process for the allocation of resources to education is transparent.
- ☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- Funding system applies to all schools and gives them extra funding or teaching hours according to number of disadvantaged students (coupling with student tracking system on socio-economic background from pre-primary to higher education). Link between funding, data collection and ex-post evaluations by the Inspectorate (see answers under questions above)

- Crisis: there are provisions in case of refugee crisis. Were refined for the 2015 crisis and update due to the Ukraine crisis.

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers’ trade unions | |
| ☒ Other: school capacity problems in times of crisis | |

- Please elaborate. Brief quantitative information may be added.

See above – temporary capacity problem for integration Ukrainian refugees in mainstream schools in the beginning of the crisis (solved meanwhile)

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☒ Other:

Awareness raising on non-discrimination in education is mostly performed by the Department of Education and Training in dialogue with the educational partners. As Belgium has not ratified CADE, the Flemish Unesco Commission is not the responsible actor in this endeavour for the time being.